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STEPS FOR NIW CASE PREPARATION

Thank you for choosing the *North American Immigration Law Group* to represent you in your National Interest Waiver (NIW) petition. Our goal in working with you is to secure the approval of your NIW petition by preparing and submitting a compelling, well-organized petition package to the United States Citizenship and Immigration Services (USCIS).

A **petition package** is the complete set of documents and legal forms that are submitted to the USCIS in support of your NIW petition. Each package is composed of several key elements:

- **Proposed Endeavor Statement:** A short document that outlines your professional goals and the specific work or research you intend to pursue in the United States, as well as its significance and impact.
- **Petition Letter:** A comprehensive legal cover letter that outlines your qualifications and your many achievements in order to demonstrate why your petition meets the NIW criteria. This document will contain detailed descriptions of your professional history, research goals, and past work, emphasizing the overall importance of your work to your field and the United States.
- **Support Letters (if applicable):** Letters from colleagues, mentors, or experts in your field that provide external validation of your accomplishments and the importance of your proposed work. Support Letters can come in two forms: *Recommendation Letters* and *Testimonial Letters*.
- **Legal Forms:** Official USCIS forms and supporting documentation that are required for the submission of your NIW petition.

The **general process** for preparing your petition package begins with us gathering detailed information from you, including your background, accomplishments, and future plans. Using this information, we will then draft the necessary documents. These documents will all be reviewed by you. After we receive your feedback, we will then revise and finalize the documents, carefully assembling them into a full and persuasive petition package. Once finalized, we will submit the package to USCIS on your behalf.

Please note that we do not use generic templates when preparing your petition package. Instead, we use the information you provide us to create strong, personalized materials. *To help us prepare your petition*

efficiently, please read the instructions below carefully, following each step and marking off each item in the various checklists.

STEP 1: Provide Your CV, Degree Documents, and Google Scholar Profile

The foundation of a strong NIW petition is a clear understanding of your background and achievements. To begin, we ask you to provide several key documents: your CV, your degree information, and your Google Scholar profile. These materials give us a detailed outline of your professional history, education, research or work, and other notable accomplishments. They also help us understand the trajectory of your career and the significance of your work. Providing these documents therefore allows us to craft a petition package that highlights your strengths and presents a compelling case to the USCIS.

Checklist:

- ☐ Upload your most recent CV to the "My Degree-Related Documents" section of the *Documents* tab.
- ☐ Upload documents related to your *highest* degree to the "My Degree-Related Documents" section of the *Documents* tab: official degree diploma**,** transcript**,** and degree evaluation (if your degree was earned outside of the United States).
- ☐ Provide the URL to your Google Scholar profile via the *Messages* function. If you have not already created a Google Scholar profile, please create your profile here, sending us the Google Scholar profile URL via *Messages* as soon as it is ready.

  *Please note that whenever you upload documents to our system, be sure to leave a message letting us know you have done so.

STEP 2: Fill Out The Following Tabs: Proposed Employment/Proposed Endeavor, Research Background Inquiry Form, Publication Record, and Recommenders (if applicable)

The items in this step give us a deeper understanding of your achievements, professional activities, and the work you plan to pursue in the United States. The information you provide here is essential for shaping the main argument of your petition and for highlighting the impact and significance of your contributions. More specifically, the information you outline in the *Proposed Endeavor/Proposed Employment* tab helps us clearly understand your future goals, projects, and employment plans. We will ultimately use this information to draft your Proposed Endeavor Statement document, as well as any viable Support Letters (if applicable). The *Research Background Inquiry Form*, which we use to draft your Petition Letter and your Support Letters (if applicable), allows us to fully grasp your past work, your notable publications, and the recognition your work or research has garnered. The *Publication Record* tab gives us a clear picture of your current and forthcoming publications. These publications are critical to our construction of your Petition Letter. Lastly (if applicable), the *Recommenders* tab helps us identify colleagues or mentors who can provide strong Support Letters, specifically Recommendation Letters. As we have just detailed, this step is therefore critical in developing a persuasive, personalized petition package.

Checklist:

- ☐ Complete the Proposed Employment/Proposed Endeavor tab.
- ☐ Complete the Research Background Inquiry Form tab.
- ☐ Complete the Publication Record tab.

  *Please note that if you do not wish to include all of your publications in the petition, you may list only those you would like to have included.

- ☐ (if applicable) Complete the Recommenders tab.

  *This task is only applicable if you have selected our Support Letter filing option. After you have provided us with this information. We will select the best signers for your Support Letters. *Please only reach out to the signers after we have instructed you to do so.* You can also use our sample email (see Appendix C) to help you reach out to potential signers.

Save your progress and notify us via *Messages* when you are ready for feedback on any of the tabs listed

above. Please note that we will likely ask for revisions to these tabs in order to ensure your case is as strong as it can be.

STEP 3: Draft And Revise Your Preliminary Proposed Endeavor Statement (PES)

After you complete and finalize the *Proposed Endeavor/Proposed Employment* tab, we will draft your preliminary PES, using the information from that tab to do so. As we have mentioned, the PES is a key part of your petition package, as it clearly outlines your professional goals and the work or research you intend to pursue in the United States, and concisely describes the significance and impact of that work. The PES is designed to reflect your goals and research, while framing them in a way that aligns with the criteria for the NIW. Once the draft is complete, you will review the PES and provide us with feedback.

Checklist:

- ☐ You will receive a drafted PES within **1–3 business days**.
- ☐ After you receive the drafted PES, please carefully review it. Then, send us your feedback by returning the document with your edits marked using Microsoft Word's "Track Changes" feature. To do this, open the document in Word, go to the "Review" tab, and turn on "Track Changes" before making your edits. Please upload your tracked changes version of the PES to the "Drafted Documents Revised by Customers" section of the *Documents* tab.

  *Please note that, at this stage, there is no need to sign the PES.

STEP 4: Draft and Revise Your Petition Letter and Support Letters (if applicable)

Once we confirm the receipt of all necessary information, including the completed *Research Background Inquiry Form*, *Publication Record*, and *Recommenders* (if applicable) tabs, we will prepare your *Petition Letter* and your customized *Support Letters* (if applicable). We will ensure that all letters are unique in tone, format, and content. We will also guarantee that all documents across your petition package are coherent and provide convincing arguments that you meet the requirements of an NIW

petition.

Checklist:

- ☐ You will receive your drafted Petition Letter and/or Support Letters within **15 business days**
- ☐ After you receive the drafted letters, please review them carefully. Then, send us your feedback by returning the documents with your edits marked using Microsoft Word's "Track Changes" feature. To do this, open the document in Word, go to the "Review" tab, and turn on "Track Changes" before making your edits. Please upload your tracked changes version of each Petition Letter and/or Support Letters to the "Drafted Documents Revised by Customers" section of the *Documents* tab.

STEP 5: Complete Questionnaire and Forms

This step guarantees that we have the necessary information to prepare your official *USCIS forms* accurately. Completing these forms carefully ensures that your petition is accurate and compliant with all the USCIS's requirements.

Checklist:

- ☐ Fill out the Questionnaire tab and ETA-9089 tab, which we will then use to complete your Form I-140, Form G-28, and ETA-9089.
- ☐ You will receive our feedback, and then receive your Form I-140, Form G-28, and ETA-9089.
- ☐ After you have reviewed the forms, please upload the signed pages for our review.

STEP 6: Further Drafted Letters Revisions

After you have revised your drafted letters (PES, Petition Letter, and Support Letters (if applicable)), we will implement the revisions for each document individually according to your tracked changes, doing

so to maintain consistency and uniqueness across your petition package.

Checklist:

- ☐ Revisions to drafted letters will be completed and returned to you within **1-3 days.**

STEP 7: Collect Signed Support Letters (if applicable)

**This is only applicable if you selected our Support Letter option.* Once the content of your Support Letters has been carefully revised and finalized, the next step is to have them signed by your respective recommenders. At this stage, the letters are considered complete and are now in the exact form that they will appear in your final petition package. Collecting the signed letters (and your recommenders' CVs) marks the conclusion of the Support Letter stage, ensuring that these documents are ready to provide strong, credible support for your petition.

Checklist:

- ☐ Email the letters to your signers.
- ☐ Ensure the letters are signed with handwritten or verified digital signatures (no typed names), and on official letterhead, if possible.
- ☐ Obtain and upload the latest CVs of your recommender, if possible. Please upload your recommenders' CVs to the "Signed Letters and Recommenders' CVs" section of the *Documents* tab.
- ☐ Upload the signed letters to us. Please upload your finalized Support Letters to the "Signed Letters and Recommenders' CVs" section of the *Documents* tab. We will then ensure the letters are not changed in harmful ways.

STEP 8: Finalize Your Petition Letter and PES

Once we have checked that all drafted letters are in good shape (PES, Petition Letter, and Support Letters (if applicable)), we will finalize your Petition Letter and PES.

Checklist:

- ☐ You will receive your finalized Petition Letter and PES **within 3 business days.**
- ☐ You will then be asked to sign the finalized PES.

STEP 9: Upload Supporting Documents

To support your PES and Petition Letters, and to provide concrete evidence of your accomplishments, you will need to upload *exhibit documents* to the Documents tab. Exhibit documents are digital files, typically PDFs or Word documents, that correspond to the evidence referenced in your Petition Letter and your PES. Such evidence includes your publications, notable citations, funding records, peer review confirmations, and other forms of supporting documentation. Providing these digital versions ensures that your petition package includes clear, verifiable evidence of your work and achievements, helping to strengthen the overall persuasiveness of your petition. ***Please note that we do NOT recommend that you upload any exhibit documents prior to this stage.***

Checklist:

- ☐ Upload digital files, typically PDFs or .docs, of the exhibit documents listed in the following locations:
  - The *Exhibit Index* in your Petition Letter
  - The document checklist in *Appendix C*

  Please upload your exhibit documents to the "Additional Documents" section of the *Documents* tab.

- ☐ Once complete, we will review and organize everything into your final petition package.

STEP 10: File Your Case And Receive Your Receipt Notice

In this final step, your completed *petition package*, containing all finalized documents, supporting evidence, and signed forms, is submitted to the USCIS on your behalf. Once the USCIS receives your case, they will issue an official *Receipt Notice*, which confirms that your petition has been filed and is in process. This notice includes your receipt number, which can be used to track the status of your case through the USCIS website. Receiving the Receipt Notice marks the formal start of USCIS's review of your NIW petition.

Checklist:

- ☐ We will perform a final quality check and file your case.
- ☐ After we file your petition, you will receive a hard copy of your USCIS receipt notice within **7–30 business days**. Use the receipt number to track your petition at USCIS Case Status.